

# Phool Chand v. State of U.P.

Allahabad High Court · Division Bench · 23 May 2018 · WRIT - C No. 18484 of 2018 · **Writ disposed of; petitioner relegated to Clause 6.5.**

## HEADNOTE

A writ raising a pending electricity-bill dispute that turns on questions of fact is not entertained when Clause 6.5 of the U.P. Electricity Supply Code, 2005 supplies a statutory remedy. The consumer may approach the appropriate authority, which is to consider the application in accordance with law. The petition was disposed of without examining the bill on merits.

## FACTUAL SUMMARY

Phool Chand filed Writ-C No. 18484 of 2018 before the Allahabad High Court against the State of Uttar Pradesh and two others. After an adjournment on 22 May 2018, the Division Bench heard counsel for the petitioner and for the respondents on 23 May 2018. The petitioner's grievance was confined to disputes over an electricity bill then pending against him. The controversy, as presented, turned on disputed questions of fact relating to that bill rather than a pure question of law.

## HOLDING-UNITS

### HOLDING-UNIT · UP-2005::6.5

billing dispute — Clause 6.5 statutory remedy

#### HOLDING

Where a consumer's writ concerns a pending electricity bill and the dispute involves questions of fact, the High Court will not entertain the petition because Clause 6.5 of the U.P. Electricity Supply Code, 2005 affords a statutory remedy; the petitioner may approach the appropriate authority, whose application is to be considered in accordance with law. ¶ 3-5

## PRINCIPLE TAGS

**billing-objection-to-executive-engineer-under-6.5** A writ raising a pending electricity-bill dispute that turns on questions of fact is not entertained when Clause 6.5 of the U.P. Electricity Supply Code, 2005 supplies a statutory remedy. The consumer may approach the appropriate authority, which is to consider the application in accordance with law.. ¶ 3-5

## NOT DECIDED — NEGATIVE AUTHORITY

### NOT DECIDED — CORRECTNESS OF THE PENDING ELECTRICITY BILL

Merits of the billing dispute were left to the Clause 6.5 authority. ¶ 3-5